

In light of the Court's ruling on Defendant's motion to quash service of the summons and complaint, the Court deems Defendant's demurrer moot. (*McClatchy v. Coblenz, Patch Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 375.)

12. 9:00 AM CASE NUMBER: C25-02647
CASE NAME: GINO CARUSO VS. ELVECIO PINHEIRO MACHADO FILHO
HEARING IN RE: MOTION FOR STATUS CONFERENCE
FILED BY:

TENTATIVE RULING:

Plaintiff requests a status conference. The unopposed request is granted. Parties to appear for status conference.

13. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
***HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT**
FILED BY: WALIA, SANDEEP, MD

TENTATIVE RULING:

Before the Court is Defendant Sandeep Walia, M.D. ("Defendant" or "Walia")'s motion to strike portions of Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, "Plaintiffs") First Amended Complaint. Plaintiffs oppose the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, with leave to amend.

Legal Standard

California Civil Code ("CC") § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant

of thereby depriving a person of property or legal rights or otherwise causing injury.

(CC § 3294.)

California Code of Civil Procedure § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.)

Motion

Defendant seeks to strike the following from the First Amended Complaint:

- Page/Lines - 56:28-57:1: “Defendants, and each of them, are liable for exemplary and punitive damages and reasonable attorney’s fees...”
- Page/Lines – 59:14-15: “For punitive damages in a sum according to proof and as the Court deems proper (pursuant to Plaintiffs’ CCP § 425.13 Motion and Court Order);”
- Page/Lines – 59:21-22: “Statutory penalties, liquidated penalties, and all other penalties and/or damages that may be permitted by law;” and
- Page/Lines – 59:24: “Reasonable attorney’s fees according to proof and as allowed by law.”

Analysis

Punitive Damages

Defendant argues that 425.13 precludes Plaintiffs’ punitive damages claim. Plaintiffs argue in opposition that a revised fraud claim will support their claim for punitive damages.

In *College Hospital*, the California Supreme Court determined that section 425.13 applies when punitive damages are sought for “any misconduct ‘directly related to the professional services provided by the healthcare provider.’” (*College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 714, quoting *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 189.)

However, intentional torts are not subject to this same requirement. (See *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 355-356 [patients’ claims for fraud, conversion, and intentional infliction of emotional distress were related to wrongful intentional conduct, not mere negligence; see also *Perry v. Shaw* (2001) 88 Cal.App.4th 658, 669 [nothing in the legislative history of MICRA suggests the Legislature intended to exempt intentional wrongdoers from liability by treating such conduct as though it had been nothing more than mere negligence].)

Under the above case law, Plaintiffs would appear to be able to seek punitive damages for their claims of negligent infliction of emotional distress and fraud.

Even so, there are insufficient factual allegations to support circumstances of fraud, malice or oppression on the part of this Defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Where the fraud cause of action is not adequately pleaded, it would not support the claim for punitive damages. Such is the case here.

For the foregoing reasons, Defendant's motion is **granted** with respect to the punitive damages allegations.

Attorney's Fees

Defendant moves to strike Plaintiffs' prayer for attorney's fees on the grounds that plaintiffs have not alleged any contractual provision that would entitle them to attorney's fees.

While Defendant is correct that Plaintiffs have not alleged any contractual provision that would entitle them to attorneys' fees, unsupported attorneys' fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, "[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings." (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorney's fees are recoverable as costs if authorized by statute, contract or law. (CCP, § 1033.5, subd. (a)(10).)

As a consequence, Defendant's motion is **denied** with respect to the attorney's fees allegations.

Statutory and Liquidated Penalties

Similarly, Defendants move to strike Plaintiffs' prayer for "statutory damages and liquidated penalties." However, for similar reasons as above, the Court **denies** the motion as to this portion of Plaintiffs' prayer for relief.

14. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
HEARING ON DEMURRER TO: TO 1ST AMENDED COMPLAINT
FILED BY: JOHN MUIR HEALTH WALNUT CREEK MEDICAL CENTER
TENTATIVE RULING:

Before the Court is Defendant John Muir Health, Defendant John Muir Health Walnut Creek Medical Center, Defendant John Muir Health Organized Medical Staff, and Defendant Contra Costa Pediatric Venture LLC (collectively, "Defendants" or "JMH")'s Demurrer to Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, "Plaintiffs") First Amended Complaint.

Defendant demurs to Plaintiffs' causes of action for (4) Negligent infliction of emotional distress